

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2732

By: McCane

AS INTRODUCED

An Act relating to marriage; amending 43 O.S. 2021, Section 105, which relates to dissolution of marriage; directing the Oklahoma Bar Association to prepare standard forms; directing the Administrative Office of the Courts to provide access to forms; providing that standardized forms are not required; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43 O.S. 2021, Section 105, is amended to read as follows:

Section 105. A. A proceeding for dissolution of marriage, an annulment of a marriage, or a legal separation shall be titled "In re the Marriage of _____ and _____".

B. The initial pleading in all proceedings under this title shall be denominated a petition. The person filing the petition shall be called the petitioner. A responsive pleading shall be denominated a response. The person filing the responsive pleading shall be called the respondent. Other pleadings shall be

1 denominated as provided in the Rules of Civil Procedure, except as
2 otherwise provided in this section.

3 C. The petition must be verified as true, by the affidavit of
4 the petitioner.

5 D. A summons may issue thereon, and shall be served, or
6 publication made, as in other civil cases.

7 E. Wherever it occurs in this title or in any other title of
8 the Oklahoma Statutes or in any forms or court documents prepared
9 pursuant to the provisions of the Oklahoma Statutes, the term
10 "divorce" shall mean and be deemed to refer to a "dissolution of
11 marriage" unless the context or subject matter otherwise requires.

12 F. Standard forms sufficient to meet the statutory requirements
13 of this section and any other relevant sections in this title to
14 complete a divorce proceeding shall be prepared by the Oklahoma Bar
15 Association in plain and understandable language. The
16 Administrative Office of the Courts shall provide public access to
17 the forms by providing a link on the Oklahoma State Courts Network.
18 Such standardized forms shall not be required to be used in any
19 proceeding.

20 SECTION 2. This act shall become effective November 1, 2025.
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